

2:00 PM

LINE 2

24-CIV-00893 VIRGINIA BREW VS ROCKET MORTGAGE, LLC

VIRGINIA BREW
ROCKET MORTGAGE, LLC

REUBEN D NATHAN
ERIC J. GITIG

COMPLIANCE HEARING

TENTATIVE RULING:

The parties are to APPEAR.

On March 17, 2026, the court had a hearing to discuss cy pres recipients. The court approved Legal Aid at Work, Legal Aid Society of San Mateo County, and Brilliant Corners. The court ordered the settlement administrator, Phoenix, to distribute the monies, and then for plaintiff to file and serve, and email Department 4 a supplemental declaration and proposed order that the funds had been distributed. No such supplemental declaration or proposed order has been submitted. Thus, it is unclear to the court that the cy pres funds have been distributed.

2:00 PM

LINE 3

24-CIV-07727

BANK OF AMERICA N.A. VS. NESTOR S MARIANO

BANK OF AMERICA N.A.
NESTOR S MARIANO

BRIAN LANGEDYK

MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

TENTATIVE RULING:

The court GRANTS plaintiff Bank of America's motion to vacate dismissal and enter judgment under terms of stipulated settlement agreement. The court grants the request for judicial notice.

On March 4, 2025, the court (the Hon. Leland Davis III) approved the stipulation for conditional entry of judgment filed February 28, 2025 and retained jurisdiction pursuant to Code of Civil Procedure section 664.6. On March 4, 2025, the court dismissed the action without prejudice.

Plaintiff now seeks to vacate the dismissal and have judgment entered in its favor against defendant. The declaration of Donald Sherrill, counsel for plaintiff, represents that defendant defaulted on the payment arrangements under the settlement agreement with the last payment on July 18, 2025. On October 27, 2025, plaintiff served defendant with the ten-day notice as required in the settlement agreement. The balance now due, owing and unpaid to plaintiff from defendant is the principal sum of \$40,916.96 plus court costs in the sum of \$1,043.61 for a total judgment of \$41,960.57.

Based on the foregoing evidence the court sets aside and vacates the dismissal and enter judgment in favor of Plaintiff and against Defendant in the principal sum of \$40,916.96 plus court costs in the sum of \$1,043.61 for a total judgment of \$41,960.57.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order and judgment in two separate documents consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
